Testing the Comparison Prompt on Cases You Know

AI-Assisted Pairwise Comparison for Large-Scale Jurisprudential Analysis: The Fifty-Year Shift from Rules to Standards in the Supreme Court of Canada — Norman Siebrasse, University of New Brunswick

What this is

The article ranks 3373 Supreme Court of Canada decisions on a rules–standards spectrum by asking an AI model, many thousands of times, which of two decisions sets out the more rule-like test. The instrument is a prompt containing a detailed rubric. The file `comparison_prompt_web.md` in this folder is a version of that prompt adapted for use through the ordinary web interface of an AI model, so that readers can see for themselves how the rubric performs on cases they know well. The production version is `comparison_prompt.py` in the same folder and is reproduced in Appendix A3 of the article. The differences between the two are listed at the end of this document.

The point of the exercise is not to reproduce the article's ranking, which rests on aggregating a very large number of comparisons, but to let a reader with an informed intuition about two decisions check whether the rubric, applied by a capable model, reaches the conclusion a lawyer would. The rubric was written for decisions of the Supreme Court of Canada and refers throughout to "the SCC", but nothing in it is specific to that court, and the web version instructs the model to read those references as references to whatever court decided the cases it is given. It can be used on decisions of any court.

How to use it

1. Choose two decisions, in a field you know, for which you have a clear intuition as to which test is more rule-like. The AI is not fully consistent on pairs whose tests are close in rule-likeness (§ 2.2.3 of the article), so a close pair is not a good first test.
2. Obtain the full text of each decision, from the court's website or a case law database, and give that text to the model. This is essential. Do not ask the model to find the decision itself, and do not rely on its knowledge of the case: the comparison in the article was made on the text of the decision alone, and a model working from memory or from a summary it has retrieved may be working from an inaccurate or incomplete account of the test. For the Supreme Court of Canada decisions in the article, the production run used everything on the Court's judgment page, including the headnote and keywords; the reasons alone are also sufficient (Appendix A1.2.4). Include all sets of reasons, not only the majority.
3. Upload `comparison_prompt_web.md` and the two decisions as attachments, and tell the model to compare the two decisions following the instructions in the prompt file. The prompt tells the model to designate one decision as Decision A and the other as Decision B and to say which is which, so that the sign of the score can be read.
4. Use a capable model: one at least as capable as Gemini 2.5 Pro, which was used in the production run. The current frontier models from the major providers all qualify. Lightweight models probably do not: the article shows (§ 2.2.3) that a smaller model with the same context window compressed the sixteen-factor rubric into a simpler heuristic

and could not tell close pairs from distant ones. The model must also have a context window large enough to take both decisions at once; two full decisions can run to several hundred thousand words. The models used in the article have a window of about one million tokens, and the current frontier models are comparable, but some free tiers are smaller. If the interface allows you to set the temperature, set it to zero, as in the production run.

5. Expect the model to take a few minutes. It will report the test it identified in each decision, a summary of the Court's contribution to each, the baseline and authoring judge, which test is more rule-like, the score on the ±2 scale, and a brief explanation.

Other ways to use it

The prompt need not be used only as written. Among other things, you can:

- Ask the model to explain its reasoning criterion by criterion (Sections A to F of the GAMMA guidelines), rather than only the summary explanation the prompt asks for. The production prompt suppressed all reasoning so that its output could be parsed automatically; this version does not, so a follow-up question will draw it out.
- Upload the prompt file and a single decision and ask the model to compare two tests from the same decision — the test in the majority and the test in a dissent, for example.
- Run the same pair several times, or on more than one model, to see how stable the result is. Variation on close pairs is expected and is discussed in § 2.2.3 and Appendix A1.2.2 of the article.

Differences from the production prompt

The production prompt is reproduced in Appendix A3 of the article exactly as run, including its errors, and is available as `comparison_prompt.py` for anyone who wants to run it unchanged through an API for replication purposes. The web version differs from it in the following ways. None of them alters the substantive guidelines by which the test is identified and assessed.

1. *Output.* The production prompt required a single JSON object with fixed fields and instructed the model, in several places, not to show its analysis. The web version asks for a readable report with the same content (the test identified in each decision, a summary of the Court's contribution, the baseline, the authoring judge, the score and its description, and a brief explanation) and omits the instructions suppressing output. Four such instructions were removed from the GAMMA guidelines: "but do not print any output showing your analysis" (opening paragraph), "Do not generate output to show this analysis" (Application Instructions), "Do not print any output showing this summary" (Summary), and "Do not produce output showing this process" (Analysis of Tension).
2. *Case identifiers and case text.* The production prompt carried a unique case number (ParqRow) for each decision, used to match outputs to inputs in batch processing, and ended with a CASE INFORMATION section into which the text of each decision was inserted. The web version removes the case numbers and the CASE INFORMATION section, states instead that the two decisions are provided with the prompt, and instructs the model to designate one as Decision A and the other as Decision B and to say which is

which. A sentence is added to the output instructions stating that Test A is the test in Decision A and Test B the test in Decision B, a correspondence the JSON schema had fixed by structure.

3. *Subjects.* In production each decision was accompanied by its official subject categories, and the model was asked to select the one corresponding to the test it identified. That information served the article's subject-composition analysis and is not needed for testing individual pairs, so the subject list and the instruction to select from it are removed.

4. *Court.* The production prompt opens "Your task is to compare two Supreme Court of Canada (SCC) decisions…". The web version opens "Your task is to compare two judicial decisions…" and adds a sentence stating that the guidelines were written for decisions of the Supreme Court of Canada, refer to the deciding court as "the SCC", and are to be read, for decisions of another court, with every reference to the SCC taken as a reference to that court. The guidelines themselves, including their references to the SCC, are unchanged.

5. *Reference to the case text.* The BETA guidelines in production read "Read the entirety of the SCC decision (located in '{fulltext1}' or '{fulltext2}') before beginning." In the Python code those braces are format fields, so the full text of each decision was inserted at that point as well as under CASE INFORMATION. The web version reads "(provided with this prompt)".

6. *Typographical corrections.* "most importat" in the Introduction becomes "most important"; in the ALPHA guidelines, "direct quotations from earlier cases without modification signals less doctrinal development" becomes "signal"; and in the GAMMA guidelines, "assign a score according to the scale below" becomes "according to the scale set out in the Introduction", where the scale appears in both versions.

7. *Criterion C1 (Precision of Language).* The production text reads:

   A test using precise or- a test using vague or abstract terms (e.g., "reasonable," "material," "substantial," "undue") is more standard-like.

   A test using quantitative (e.g., "within 30 days," "over $10,000") terms is more rule-like.

   The fragment "precise or-" is the beginning of the second sentence, spliced in editing onto the first. The web version restores the two sentences:

   A test using vague or abstract terms (e.g., "reasonable," "material," "substantial," "undue") is more standard-like.

   A test using precise or quantitative (e.g., "within 30 days," "over $10,000") terms is more rule-like.

   No words are added; "precise or" returns to the sentence it belongs to. In the production run the model saw the garbled form, in which the rule-like side of the criterion was stated in terms of quantitative terms alone.